

		Additionally, the responses are substantially compliant. (Decl. of Means, Exh. G.) Huizar contends that, although missing the agreed upon December 29 deadline may have initially been excusable, Defendant was not diligent in providing responses once the error was discovered. However, as Defendant points out, December 29 fell within the holiday period. Huizar’s counsel reached out to Defendant’s counsel on December 30 and December 31, but complains that Huizar’s counsel did not respond until Monday, January 5. Given the New Years holiday and intervening weekend, it was not unreasonable for Defendant’s counsel to respond on January 5. In addition, Defendant’s counsel remained in continuous communication with Huizar’s counsel until the responses and verifications were served approximately two weeks later. Accordingly, the Motion is GRANTED. Moving party to give notice.
5.	30-2024-01442123 Huy vs. Lake Mission Viejo Association	1. Motion-Other (Determining December 12, 2025, Transmission did not Constitute Valid Service) Defendant Park West Landscape Maintenance Inc. (“Park West” or “Defendant”) moves for an order finding that plaintiff Nancy Huy’s (“Plaintiff”) December 12, 2025 transmission of discovery responses did not constitute valid electronic service for purposes of commencing the 45-day period under Code of Civil Procedure sections 2030.300(c) and 2031.310(c) and that Park West’s Motions to Compel filed and served on February 2, 2027 are timely. Park West further moves for an order compelling Plaintiff to serve further verified responses without objections to Special Interrogatories, Set One, Nos 19, 20, 23, 24, 27, 28, 34, 35, 37, 38, 41, 42, 43, and 50. Defendant argues that its discovery motions were timely filed because the 45-day period was not triggered on December 12 due to attorney Ed Sipes being left off of the email serving Plaintiff’s responses. However, service on only one attorney when a party is represented by multiple attorneys constitutes effective service. (See, <i>Adaimy v. Ruhl</i> (2008) 160 Cal.App.4th 583, 588 [holding service on one of the two law firms representing client was sufficient].) Defendant does not dispute that Joshua Watts and Robert Kubler, both of whom appear on the caption of Defendant’s written discovery, were served by email with the responses on December 12. Further, Mr. Kubler confirmed receipt of the responses the same day. Defendant contends that Plaintiff failed to its designated electronic service address but provides no evidence that Plaintiff was requested to include Ed Sipes on any service emails prior to December 12. Notably, Mr. Kubler’s email in response confirming receipt of the responses on December 12 raised no concerns regarding the absence of Ed Sipes on the email chain. Thus, the Court finds Plaintiff’s December 12 service of responses was valid and the deadline for Defendant to file any motions to compel ran from that date. Because the responses were served electronically, Defendant had until January 28, 2026 to file a motion to compel. The motion was not filed until February 2, 2026, five days after the deadline. The 45-day time period within which to make a motion to compel further answers “is mandatory and jurisdictional” and “it renders the court without authority to rule on motions to compel other than to deny them.” (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1409-1410.) Because Defendant’s discovery motions were not timely filed, the Court has no authority to rule on them other than to deny them.

		Defendant alternatively requests relief from the consequences of its untimely filings pursuant to Code of Civil Procedure section 473(b), arguing that the failure to calendar the correct deadline for a motion to compel was a mistake of counsel’s calendaring assistant. Defendant contends that the calendaring assistant did not receive Plaintiff’s responses until December 18 while reviewing a December 16 email from counsel for co-defendant Lake Mission Viejo Association (“LMVA”) and the calendaring assistant calculated the deadline using December 16 as the operative receipt date. The court may relieve a party, “upon any terms as may be just, . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473(b).) “‘The inexcusable neglect of an attorney is usually not a proper basis for granting the client’s motion under section 473.’ [Citation.] ‘Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.’” (<i>Huh v. Wang</i> (2007) 158 Cal.App.4th 1406, 1419.) “Relevant factors in assessing counsel error include: ‘(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim.’” (<i>Id.</i> at p.1423.) “‘Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.’” (<i>Ibid.</i>) “‘To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.’” (<i>Ibid.</i>) Here, the Court finds that Defendant’s failure to timely file its motion was not the result of any mistake, inadvertence, surprise, or excusable neglect. Defendant concedes that counsel was served with the responses on December 12. Counsel’s failure to ensure that the proper deadline to file a motion to compel was calendared fell below the professional standard of care and cannot constitute excusable neglect. Reasonable and ordinary prudence would have prevented the error. To the extent Defendant is arguing that the untimeliness of its motion was due to the calendaring assistant’s mistake of using December 16 as the date responses were served, this is also not excusable. The calendaring assistant’s calculation based on the date an email from counsel for LMVA, not Plaintiff, is not reasonable, as clearly it was not LMVA’s counsel who served the responses. Further, simply glancing at the proofs of service attached to the responses would have revealed the true date of service. Based on the above, Defendant’s motion to find service of the responses defective is DENIED. Accordingly, Defendant’s motion to compel further responses is also DENIED as untimely. Moving party to give notice.
6.	30-2024-01415577 Mejorado vs. General Motors, LLC	1. Motion for Attorney Fees Plaintiffs Eric Mejorado and Elizabeth Mejorado formerly known as Elizabeth Aguilar (“Plaintiffs”) move for an order awarding them attorney fees pursuant to Civil Code section 1794(d), in the total amount of \$22,972.00, consisting of \$19,972.00 and an additional \$3,000.00 to review the opposition, prepare a reply, and attend the hearing against defendant General Motors LLC (“Defendant”). Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794,